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File No.: EXP202302555

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On January 16, 2023, a complaint was received by this Agency filed by Mr. A.A.A. (hereinafter, the complainant) against the AYUNTAMIENTO DE GATA (hereinafter, the respondent) for not having duly attended to the right of access.

The complainant states that on July 4, 2022, he exercised the right of access before the Ayuntamiento de Gata, requesting a copy of all data processed to manage the fee for the provision of water service to homes.

On August 1, 2022, the respondent addressed the request by sending a letter in which they provided: the processed data (name, surname, ID number, and address of the property generating the fee), purposes of the processing (Management of the Fee for the Provision of Water Service to Homes and the Sanitation Fee of the Junta de Extremadura), legitimacy (Article 6.1 c) of the GDPR), recipients, retention periods, rights, information available about the origin (IBI urban nature 2017), automated decisions (none exist), and transfer (none are made).

According to the complainant, through this response, not all of his data was provided, in accordance with the provisions of Article 15.3 of the GDPR.

Along with the complaint, he submitted the request made and the response issued to address the right.

SECOND: The respondent indicated in the response to the transfer of the complaint made by this Agency that a Mayor's Resolution dated July 27, 2022, was issued and notified to the complainant.

"Therefore, this Ayuntamiento has complied in a timely manner with the access to the requested information regarding the personal data of the applicant concerning the water supply fee, with no other data existing than those provided in the response."

In light of this, this Agency, in its resolution dated April 24, 2023, considered that the right had been attended to.

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THIRD: Dissatisfied with the resolution, the complainant filed a motion for reconsideration arguing that the exercise of the right of access was responded to incompletely as the data corresponding to the registration date in the fee registry for the provision of water service to homes, water consumption values or meter readings, and the dates on which these were made for each tax period settled were not provided. Furthermore, it is indicated that the data declared to the General Directorate of Taxes of the Junta de Extremadura with the semi-annual self-assessments of the sanitation fee were not provided.

After instructing the corresponding Motion for Reconsideration procedure, in which the respondent was given the opportunity to be heard, on October 19, 2023, the Director of this Agency upheld the motion because the respondent did not prove that they had provided the data requested by the appellant or that they had reasonably denied the delivery of such data.

FOURTH: As a consequence of the acceptance of the aforementioned Motion for Reconsideration, the present Rights Procedure was opened, transferring the documentation to the respondent, so that within ten working days they could present any allegations they deemed appropriate, without any written submission being made.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for them.

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Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

The initiation of this procedure occurs due to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in the event that it does not intend to address such request.

The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

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The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data." Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, thus fulfilling the request (although the interested party may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered, which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others.

V

Conclusion

In this case, from the examination of the documentation provided by the parties during the processing of this procedure, it has been established that the complainant requested access to their personal data, and although it is true that the respondent replied by providing some data, it has not been proven that they provided all the requested data or that they have duly justified the denial of such data.

Consequently, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge the AYUNTAMIENTO DE GATA to, within ten working days following the notification of this resolution, send to the complainant a certification addressing the requested right or duly denying it, indicating the reasons why the request cannot be met, in accordance with the provisions set forth in this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Failure to comply with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to AYUNTAMIENTO DE GATA.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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